

IPRA Request Template — ALPR Records — Alamogordo, NM

New Mexico Inspection of Public Records Act (NMSA 1978 §§ 14-2-1 et seq.).

Replace every bracketed field below with your information before sending.

[Your Name] <-- required under IPRA

[Your Mailing Address] <-- required

[Your Email Address] <-- required

[Your Phone Number] <-- required (not optional)

NOTE: New Mexico's Inspection of Public Records Act requires that a written request contain the requester's name, address (mailing), email address, and telephone number (NMSA 1978 § 14-2-5; see also the NM State Personnel Office summary at spo.state.nm.us). A request that omits any of these may be rejected as not properly submitted.

Date: [Insert Date]

City of Alamogordo — City Clerk
1376 East Ninth Street
Alamogordo, NM 88310
Phone: (575) 439-4100, Option 6
Email: ipra@ci.alamogordo.nm.us

By email (ipra@ci.alamogordo.nm.us) is fastest and creates a paper trail.

By certified mail, return receipt requested, also creates a paper trail.

Re: Inspection of Public Records Act Request — Automated License Plate Reader (ALPR) Records, City of Alamogordo and Alamogordo Police Department

Dear Records Custodian:

Pursuant to New Mexico's Inspection of Public Records Act, NMSA 1978 §§ 14-2-1 et seq. (IPRA), I respectfully request copies of the following records held by the City of Alamogordo, the Alamogordo Police Department (APD), or any contractor or agent acting on the City's behalf, related to the City's acquisition and use of automated license plate reader (ALPR) technology — including any system manufactured, sold, or operated by Flock Safety, Vigilant Solutions, Rekor Systems, Motorola Vigilant, or any other ALPR vendor — for the period of January 1, 2023, through the date of this request.

This request is submitted by a resident of New Mexico and concerns the conduct of public business in this state. The records I request are not exempt from disclosure under § 14-2-1(A) or any other provision of New Mexico law, and to the extent any portion of this request is denied or redacted, I ask that you provide a written explanation citing the specific statutory exemption relied upon, as required by § 14-2-11.

RECORDS REQUESTED

Please provide copies of the following records. Where records are maintained in an electronic database, I request an export in a machine-readable format (CSV, Excel, or PDF) pursuant to § 14-2-8(B).

1. CONTRACTS AND AGREEMENTS

- a. All contracts, agreements, memoranda of understanding (MOUs), data-sharing agreements, license agreements, statements of work, and other binding documents between the City of Alamogordo (or APD) and any ALPR vendor, including but not limited to Flock Safety, Inc.
- b. All amendments, addenda, exhibits, side letters, or extensions of the contracts identified in (1)(a), executed or in effect at any time during the requested period.
- c. All procurement documents, requests for proposals, requests for quotes, bid responses, evaluation documents, and award notices relating to the selection or acquisition of any ALPR system.

2. POLICIES, PROCEDURES, AND TRAINING

All policies, procedure manuals, directives, standard operating procedures, training materials, and internal guidance documents, in effect or revised during the requested period, that describe:

- a. Who within the City or APD is authorized to search, query, or otherwise access ALPR data — including any specific roles, ranks, units, or individuals granted access.
- b. The process for granting, revoking, monitoring, or auditing such access, including any controls on third-party access.
- c. The circumstances under which a license plate may be searched in ALPR data, including any required criteria, approvals, justifications, or supervisor sign-offs.
- d. The circumstances under which an alert, hot-list entry, or notification may be created for a specific license plate, including the criteria, approvals, and retention period for any such list.

3. DATA-SHARING AND PARTNER AGENCIES

- a. The names of all law-enforcement agencies (local, state, federal, tribal, or international) and all non-law-enforcement entities (including homeowners associations, private businesses, and individuals) that have been granted access to ALPR data collected by or on behalf of the City of Alamogordo.
- b. All agreements, MOUs, or other documents governing such data sharing, including any terms on data retention, allowed use, prohibited use, auditing, and termination.
- c. The total number of ALPR data-sharing requests received from and fulfilled to other agencies, by agency, for each year of the requested period.

4. DATA RETENTION, STORAGE, AND DELETION

- a. The retention period for ALPR data, both for data not associated with an active investigation ("non-hit" data) and for data associated with an investigation or alert.
- b. The location(s) where ALPR data is stored (on-premises, vendor cloud, third-party cloud), and the jurisdiction(s) in which that storage resides.
- c. All policies, procedures, and audit logs relating to the deletion or purging of ALPR data at the end of its retention period.

5. DEPLOYMENT, LOCATIONS, AND USE

- a. The total number of ALPR cameras currently operated by, for, or on behalf of the City of Alamogordo, and the general location of each (intersection, address, or geographic area).

- b. The number of license plate scans performed by ALPR cameras operated by or for the City, by month, for the requested period, including any breakdown by camera location.
- c. The number of "hits" (matches against hot lists or alerts) generated by the ALPR system, by month, for the requested period.

6. COSTS, FUNDING, AND BUDGET

- a. The total amount paid by the City of Alamogordo to any ALPR vendor, by year, for the requested period, including any line items in the City's annual budget relating to ALPRs.
- b. The source of funds used to pay for the ALPR system (general fund, opioid settlement funds, grant funds, or any other source), and any restrictions on the use of those funds.
- c. All invoices, receipts, and payment records relating to the ALPR system.

7. TERMINATION AND CANCELLATION

- a. The full text of any termination, cancellation, or "no-cause" clause in the City's ALPR contract(s), including any required notice period, termination fee, data-destruction obligations, and post-termination access rights.

FORMAT, FEES, AND TIMELINE

FORMAT. Please provide the requested records in PDF format where they exist in that form, or in the machine-readable format in which they are maintained (CSV, Excel, native PDF) for any data exports. Paper copies are acceptable if electronic records are not available.

TIMELINE. New Mexico law requires a response to an IPRA request "as soon as practicable, but in no event later than fifteen days after receipt" for most public records, § 14-2-8(D), and within three business days for records to which a law-enforcement-related exception may apply, § 14-2-8(F). I understand that a portion of this request may implicate law-enforcement exceptions under § 14-2-1(A)(3) or § 14-2-1(A)(4); I nevertheless ask that you process the portions of this request that do not implicate those exceptions without delay, and that you identify with specificity any record withheld under an exception and the legal basis for that withholding.

DENIALS. If any portion of this request is denied or redacted, please provide a written explanation citing the specific statutory provision and any applicable case law on which the denial relies, as required by § 14-2-11.

FEES. I am willing to pay reasonable fees for copying, not to exceed \$25.00 in total. Please notify me in advance if you anticipate fees in excess of this amount, so that I may narrow or prioritize the request. I respectfully request a fee waiver or reduction under § 14-2-9, on the grounds that:

- (a) the records concern the operations of a public agency and the expenditure of public funds;
- (b) the request is made for non-commercial purposes; and
- (c) the records will contribute to public understanding of the City's ALPR program.

HOW TO REACH ME

The fastest way to reach me is by email at the address above. If you have questions about the scope of this request, please contact me before denying the request in whole or in part; I am happy to clarify

or narrow the request. If you need additional time beyond the statutory deadline, please provide written notice under § 14-2-8(E) specifying the additional time required and the reasons therefor.

If I do not receive a response within the time required by law, I understand that I may pursue the remedies set out in § 14-2-12, including an action in district court for injunctive relief, damages, and reasonable attorney fees.

Thank you for your attention to this request.

Sincerely,

[Your Signature]

[Your Printed Name]

ABOUT THIS TEMPLATE

This template is prepared under the New Mexico Inspection of Public Records Act.